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Incredible India

GOVERNMENT OF INDIA
MINISTRY OF TOURISM

No. 6.TT.I.(18)/2012 Date: 30.12.2014

The Guidelines for the Selection & Grant of License to Local Guides by State Governments/ UT Administrations

Introduction & Objectives:

Guides act as the brand ambassador of not only the tourism industry but the visited area, state and above all the entire nation. Guides play a vital role in bringing satisfaction to the tourists visiting the place as they have a opportunity of directly interacting with the tourists and projecting the image of the place and overall the country. A great deal of time of the tourist at a place is spent in the company of the guide and this makes guide all the more responsible to provide factually correct information about the destination, ensure the safety, security and general well being of the tourist. Guides, therefore, play a big role in the pleasant and satisfying stay of the tourists.

The institution of guides is a basic component of the infrastructural requirement for the promotion and development of local and domestic tourism. The domestic tourism has been showing a steady double digit growth pattern over a period of time now and has already crossed 1000 million mark in 2012 and it is imperative to have a healthy number of trained guides proficient in Hindi and other languages as per the 8th schedule of the Constitution of India to cater to the local and domestic tourists requirements. The Guidelines are indicative references and Advisory in nature for State Governments/ Union Territory (UT) Administrations that may be followed for selection and issue of licenses to Local Level Guides

2. Scope:

There shall be only one category of guides known as the *Local Level Guide* who would be authorized to work within the municipal boundary of the destination on a full time basis. However the State Government may decide on the area of operation within the State.

3. Eligibility:

3.1 Educational qualification(s):

The following educational qualifications are prescribed for the selection of local level tourist guides and all applicants should have fulfilled the criteria on or before the date of publication of the first advertisement for selection and training.

(a) At least class 12th (10 plus 2)pass out from a recognized institution board or

(b) Candidates should have knowledge and fluency in any language depicted in any one language of the 8th Schedule of the Constitution of India i.e Assamese, Bengali, Bodo, Dogri, Gujarati, Hindi, Kannada, Kashmiri, Konkani, Maithili, Malayalam, Manipuri, Marathi, Nepali, Odia, Punjabi, Sanskrit, Santhali, Sindhi, Tamil, Telugu and Urdu. The fluency shall be tested at the time of written examination which shall be given in the local language of the destination selected by the candidate.

3.2 Age Limit:

The applicant should be at least 18 years of age on the date of the first advertisement appearing in the media for selection of Local Level Guides.

3.3 Domicile Proof:

(a) Candidates who wish to get admission in training programme and work as Local Level Guides will have to submit their residence proof of the State in which the destination comes.

(b) Candidates have to submit the proof of Domicile with the application of admission for the Local Level Guide Training Course. The following will be accepted as documentary proof for Domicile:

(i) Certificate of Residence proof by the competent authority (not below the rank of Tehsildar
(ii) Passport.
(iii) Voter Identity Card.
(iv) Ration Card.
(v) Aadhar card

4. Process of selection:

4.1.1 The assessment of the requirement of Local Level Tourist Guides, destination-wise, could be as per the domestic tourist arrivals, number of ASI monuments, available licensed guides, growth potential, availability of assignments to guides and all other relevant factors and would normally be done once in three years by the State Governments/UTs through a pre-defined process involving the stake holders.

4.1.2 The process of selection would be undertaken by any recognized institution that the State Government/UT Administration may deem fit for conducting this process.

4.1.3 The applications shall be invited through open advertisement specifying the seats available for training, destination wise. Applicants shall submit their applications in the prescribed Proforma along with photocopies of all documents required as proof of their eligibility and in no case; applicants would be allowed to submit any additional documents as proof at a later stage.

4.2 Entrance Test:

4.2.1 An entrance test would be conducted to evaluate the general intelligence and suitability of applicants for admission to local level guide training. The entrance test would be of two hours duration and cover the following subjects:

(a)	Knowledge of monuments / tourism products of the destination (Paper A)	100 marks
(b)	Indian & local history & culture- (Paper B)	50 marks
(c)	General Knowledge (Paper C)	50 marks

Note:

(i) For local level guides, the written test would be conducted in the concerned local language as per the 8th schedule of the Constitution of India.

(ii) All applicants shall obtain at least 100 marks out of total marks of 200 for qualifying the written test.

4.3 Preparation of Merit List:

4.3.1 A merit list of all applicants who pass the entrance test would be prepared on the basis of aggregated marks. In case of a tie at cut – off level in the merit list, the merit will be decided on the basis of following:

First on the basis of score in paper A followed by score in paper B. If the tie still persists, score in paper C will be considered. If the tie is not resolved through the above, the age of applicants will be considered for deciding merit and those older in age will be placed higher in merit list.

4.4 Counseling, document verification and allotment of training seats:

4.4.1 On the basis of merit in the entrance test, the qualifying applicants would be called for an open counseling and documents verification. The admission against available seats would be offered strictly on the basis of merit basis subject to fulfillment of all the prescribed eligibility conditions. The candidates shall present themselves in person to claim seat for training and shall report on the time and at the venue notified by State Government/ District Administration/ the designated institute.

4.4.2 The applicants shall submit all original documents for verification at the time of counseling. Failure to produce original documents would lead to rejection of candidature.

Note:

i. In no case would qualifying the written test give right of admission to training. The seats advertised for training would be allotted strictly as per the merit list of the qualifying written test. In case the number of candidates qualifying the written test happens to be lesser than the number of seats available, the admission would be limited to the qualifying candidates only.

ii. All documents submitted by candidates shall be sent for verification to the issuing agencies. If the documents are not verifiable or found to be incorrect at any time during the training, the candidature of applicant would be cancelled.

5. Duration and Training inputs:

5.1 The duration of the Guide Training Courses and training inputs are as under:

Duration of class room training	:	6 weeks
Duration of field training	:	2 weeks

During the training, the trainees would be imparted knowledge of essential guiding skills, tourism products / aspects of the destination & state, and fair knowledge of social, political and economic policies etc., of the destination/region in specific and entire country in general. The detailed syllabi would be laid down with the approval of State Government/UT Administration and would be regularly updated.

5.2 **Field Training:**

(i) The field training would be given to cover all important places of Tourist interest in their designated area of operation including Archaeological Survey of India (ASI) Protected Monuments which are open to tourists.

(ii) During the training course frequent group discussions & role plays shall be arranged to improve their interactive and relational abilities.

(iii) After the training is over, the candidates would submit a report of their learning before the viva-voce.

6. Evaluation:

Examination consisting of a written test and viva voce shall be conducted at the end of the training programme for the evaluation of the trainees

6.1. Written test:

The written test would be of 200 marks covering the entire syllabus during the training course and the guide -trainees must secure minimum 100 marks in the written test to be eligible for viva voce. The written examination shall be conducted in the local language for which the guide is being selected.

6.2 Viva-Voce:

6.2.1 After passing the written test the trainees would undergo a viva voce test of 100 marks where the guiding skills, knowledge of the monuments / destination, communication skills, etc., would be tested.

6.2.2 Trainees would be eligible for successful completion of Local level guide training certificate after passing both the written test and viva-voce.

6.3 Supplementary Examination:

In case the candidate does not secure minimum passing marks in the written test or viva-voce after training; he would be given two opportunities to appear for supplementary examination and viva voce, at an interval of three months', each counted from the date of declaration of last result. If a candidate fails to pass in the supplementary chances, his candidature would be cancelled.

After all supplementary chances are exhausted; candidate would have to seek fresh admission and repeat the guide selection and training process.

7. Attendance:

A minimum of 80 per cent attendance, both in class room teaching and field training, taken separately, would be essential before taking the final examination. However, relaxation up to 10% can be given by the concerned authority in the approved / designated Institute handling / conducting the course, in genuine cases of sickness, specific family circumstances or other - wise satisfactory reasons.

8. Issuance of guide license:

On successful completion of their local level guide training course, the successful candidates would be issued Local Level Tourist Guide License by the State Government/UT Administration / District Administration. The license would be valid for a period of 10 years. In case any ASI protected Monument falls within the area of operation, the Guide License being issued will be endorsed by the designated officer of Archeological Survey of India who is custodian of these monuments.

8.1 Verification of antecedents:

Prior to issuing of guiding license, the candidates would have to undergo a

verification of their antecedents through the Police and any adverse report would lead to immediate disqualification of the candidate.

9. Renewal of guide license:

The Local Level Tourist Guide licenses would be renewed every ten years and subject to the performance of guides and passing one Refresher Course conducted by the State Government/UT Administration or any other institute identified/designated by the State/ UTs.

The guide must submit the guide license for renewal 30 days prior to date of expiry of its validity along with certificate of successful completion of Refresher Course.

10. Frequency of refresher courses and the procedure for induction of guides:

10.1. State Government/UT Administration or any other institute identified/designated by the State/ UTs would conduct mandatory Refresher Courses for the guides who are due for Renewal of the Local Level Tourist Guide License. The Refresher Courses would be conducted every three years and the Local level Tourist Guides would have to participate in all of them. The licensed guides would be required to successfully pass the Refresher Courses for Renewal of their licenses. The Courses would be so organized that the guides are able to attend the same, prior to the Renewal of guide license. The designated Institute for the purpose of guide training, the syllabi etc., shall be decided from time to time by State Government/UT Administration in consultation with the stake holders and the institutes.

11.Course fee:

The selected candidates would be required to pay the course fee including the examination fee. The fee would be decided by State Government/UT Administration or any other institute identified/designated by the State/ UTs. The fee structure may vary from course to course. In addition, a fee, to be decided by the State Government/UT Administration of India from time to time, shall also be charged for grant of a guide license, for renewal of a guide license and for issuance of a duplicate guide license. All fees so collected would be non-refundable.

12.Other Conditions:

The Local Level Tourist Guides would have to work as licensed guides for a minimum of 90 days in a year.

13.Signing of Regulatory Terms and Conditions:

All Local Level guides would be required to sign their acceptance and observance of rules and regulations as prescribed by the State Government/UT Administration

in the Terms and Conditions regulating the conduct and performance of licensed guides, prior to their being issued a guide license
(Annexure-I).

14.Penal Provisions:

14.1 Penalty proceedings against licensed local guides can be initiated if any complaint or information regarding misconduct or violations of terms and conditions of State Government/UT Administration is received by Local Municipal Corporation / State /UT Tourism department / Regional Director, India Tourism, Association of Domestic Tour Operators of India (ADTOI) /Indian Association of Tour Operators

14.2 On receipt of any complaint or such information against an approved Local Level Guide, the concerned officer designated by the State Government/UT Administration shall undertake a fact finding inquiry by self or through any sub - ordinate officer. After ascertaining the facts and having being convinced that a prima facie case exists, a Show Cause Notice would be issued to the said guide, giving him / her, an opportunity to submit a representation in defense of the allegations leveled against him / her within a period of 30 days from the date of receipt of the notice. Show Cause Notice can be issued by the designated officer of the State Government.

14.3 The final decision on such representation would be made with the prior approval of designated officer of the State Government within 45 days from the date of receipt of the reply to the Show Cause Notice. In case the guide is found guilty for the first time, his / her guide license shall be suspended for a period of up to six months. In case any guide is held guilty for the 2nd time, his / her guide license shall be suspended for a period above 6 months but not exceeding one year and in case of 3rd default, the guide license shall be withdrawn, permanently. Final decision on all such occasions would have to be approved by the designated officer of the State Government.

14.4 The decision imposing the penalties would be a Speaking Order, after considering the case on merit and after careful consideration of all material facts brought to the notice and clearly mentioning the reasons for the decision. The Appellate Authority in respect of orders passed by the designated officer would be decided by the State Government.

15.Transfer of Guides:

Change from one destination to another would not be considered as a matter of right. Individual cases would be decided based on valid justification and number of guides already licensed for the destination in which the person is working and also the destination for which transfer is sought. No transfer would be permitted for an initial period of 3 years after completing the local level guide course and issuance of license. Thereafter, the request for transfer from one destination to another would be

considered provided the candidate qualifies the examination (written & viva - voce) after attending full Local Level Guide Training Programme for the destination to which the transfer is being sought on payment of the prescribed fee for that course conducted by the State Government/UT Administration or the designated Institute of the State Government/ UT Administration.

16.Guide Fees:

The fees to be charged by the guides would be fixed / revised from time to time by Local Guide Federation/ Association in consultation with Association of Domestic Tour Operators Association of India / Indian Association of Tour Operators or its representatives.

17.Guide License:

The guide license for Local Level Tourist Guide would be in the specific colour as per the colour schemes pre - determined by the State Government/ UT Administration

18.Retirement:

There would be no retirement age prescribed for licensed guides. However, after attaining the age of 65 years they have to undergo a physical - cum-mental fitness test and produce a Medical Fitness Certificate from Registered Medical Practitioner (RMP) before their licenses are renewed.

Note: The State Government of India reserves the right to issue clarifications, modify or amend the guidelines from time to time, without assigning any reasons.

Annexure – I

Terms and conditions regulating the conduct and performance of licensed Local Level Tourist Guides

1. The licensed guide, when on duty, shall; always wear the laminated guide license issued by the State Government/UT Administration and also wear the name tag while accompanying tourists.

2. The guide license is strictly non – transferable and the licensed guide would not lend his / her guide license or any other document which may have been issued to him / her by State Government/UT Administration to any other person(s). Any violation of this rule would make him / her liable to disciplinary action and withdrawal of the guide license granted to him / her.

3. In case of loss or damage to the guide license the guide would immediately inform the office of concerned India Tourism and the nearest Police Station. The Guide would have to apply afresh for the duplicate guide license on the basis of First Information Report (FIR) and statement that the guide license has been lost. The guide would be responsible for the safe custody of the guide License.

   A fee to be determined by the concerned State Government/UT Administration from time to time would be charged for issuance of Duplicate guide license.

4. The guide would not solicit tips from tourists.

5. The licensed guide would dress in a presentable manner to uphold the dignity and honor of the profession to which he / she belongs and of the country.

6. The guides would charge the guide fees fixed from time to time by Local Guide Federation/ Association in consultation with Association of Domestic Tour Operators Association of India / Indian Association of Tour Operators or its representatives.

7. The guide would not canvass business of any kind on behalf of the business houses, travel agents, hoteliers, paying - guest houses, shop-keepers, transport operators, etc., nor he / she would accept monetary commission from them or indulge in any other unethical practices.

8. The guide would not enter into any other business arrangements with any of the establishments either by way of partnership or on commission basis.

9. The Local Level Guides should not be regularly / permanently employed in Travel & Hospitality industry.

10. Guides found to be canvassing for shopping establishments like shops selling handicrafts etc., would be liable for cancellation of their license.

11. The guide would take tourists only for sightseeing to the monuments and public buildings, which are a part of the sightseeing tour included in the itinerary of the tourists. Under no circumstances should any guide accompany the tourists to shops. In case, any guide is found to have contravened this provision his / her license is liable to be cancelled / revoked.

12. The guide would not refuse without valid reasons any assignments given to him / her by the offices of the Central / State Governments or other agencies such as travel agents / tour operators / hoteliers, etc. If the guide repeatedly refuses three assignments in a season, his / her guide license would be liable to be suspended / revoked.

13. The Local Level Guides licensed by State Government/UT Administration would not refuse assignments from the State Government/UT Administration unless there is a valid reason for doing so.

14. The guide would maintain good conduct and courteous behavior towards tourists or other officials with whom he / she comes in contact during the course of his / her assignment.

15. The guide would be liable to following penalties in case of late arrival for assignments:-

(a) First late arrival: warning in writing.
(b) Second late arrival: deduction of 25% of fees.
(c) Third late arrival: disqualification for one month when the second and third late arrivals are both within a period of six months.
(d) Total absence: disqualification for a period of three months.

Note:

The above penalties would apply to a guide who after having accepted an assignment does not report for duty at the appointed time except in such cases where late arrival / absence were due to circumstances beyond his / her control. In such cases if the designated officers of the State Government/UT Administration is not satisfied with the explanation given by the guide, he / she is fully empowered to initiate the penalty proceedings as envisaged above. Complaints regarding habitual late arrivals for assignments, etc., would be viewed seriously and can lead to cancellation / withdrawal of guide license.

16. The guide would accept all assignments including those for FIT's, groups, coach tours, excursion, etc. These would be accepted as per the rules .

17. The guide would submit an annual statement indicating the number of assignments handled including handling of VIPs, groups, FITs in the prescribed Performa to the designated authorities of State Government/UT Administration.

18. A licensed guide would be compulsorily required to attend any short-term training, refresher courses that may be / as directed by the State Government/UT Administration concerned from time to time.

19. The guide would be required to submit a medical certificate of fitness on entry into the profession and thereafter, whenever required by the concerned State Government/UT Administration.

20. Absence of more than three months from the guiding profession must be reported to the designated official of State Government/UT Administration in writing.

21. The guide would report to the concerned India Tourism Office in the event of their trips abroad for a period exceeding three weeks.

22. The guide license of a guide who is arrested by the Police for offence of misconduct involving moral turpitude shall be withdrawn during the pendency of the case against him / her. In the event of his conviction by a Court of Law, the guide license would be forfeited forthwith.

23. The guide would be responsible for warning tourists against taking photographs of places which are prohibited by law or which may reflect adversely on the country's image.

24. On receipt of any complaint against an approved Local Level Tourist Guide, the concerned authority of State Government/UT Administration Office after a fact finding exercise would issue a Show Cause Notice to the said guide giving him / her an opportunity to submit a representation in defense of the allegations leveled against him / her within a period of 30 days from the date of receipt of the notice. In such cases, the Show Cause Notice by the concerned official of State Government/UT Administration would be issued with the prior approval of the concerned Director/Commissioner Tourism of the State Government/UT Administration. The final decision on such representation would be made with the prior approval of Director/Commissioner Tourism of the State Government/UT Administration within 45 days from the date of receipt of the reply to the show cause notice. In case the guide is found guilty, his / her guide license shall be suspended for a period of up to six months. In case any guide is held guilty for the 2nd time his / her guide license shall be suspended for a period above 6 months but not exceeding one year and in case of 3rd default, the guide license shall be withdrawn permanently. However, a final decision on all such occasions would rest with the Director/Commissioner Tourism of the State Government/UT Administration.

25. The licensed guide would accept assignments only for the destination for which a local level guiding license has been granted by the State Government/ UT Administration

26. If a guide remains absent from active guiding for a period exceeding two years due to reasons of health, absence from country, etc., he / she shall be deemed to have left the profession and in that event the guide license issued to the guide shall stand cancelled. However, in case a guide wants to rejoin the profession after an absence of two years he / she would have to undergo a Refresher Course to be conducted by designated Institute in co – coordination with the State Government/ UT Administration.

27. The guide would abide by the existing rules and any other rules and conditions that may be framed from time to time by the State Government/ UT Administration and the Archaeological Survey of India, failing which the guide license issued to him / her shall be withdrawn.

28. The Guide shall, at the time of being granted the license, sign a pledge of commitment to abide by the Code of Conduct for Safe and Honorable Tourism as adopted by the Ministry of Tourism, Government of India and at all times follow the provisions of the code.

29. While guiding in the Protected Monuments, the Guide shall abide by the provisions of Ancient Monuments and Archaeological Sites & Remains Act (AM & ASR) Act 1958 and Rules 1959.

26. The Guide would have to pay an annual fee for entrance to the precincts of protected monuments which would be decided in consultation with ASI from time to time.

27. The Guide shall abide to the instructions given by site in charge or field staff while taking round in the ASI Monument premises.

28. The guide shall make taking entry in the register kept at ASI monument while taking visitors to that particular monument.

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DECLARATION

Paste recent Passport size photograph

"I hereby solemnly agree to abide by and accept all the above 'Terms & Conditions" **(Annexure – I)**. I have also read and understood the 'Code of Ethics for Tourist Guides' attached as **Annexure – II** hereto and I undertake to uphold them faithfully in the discharge and conduct of my profession."

Name:

Place:

Date:

Signature :

Annexure – II

Code of ethics for Local Level Tourist Guides

- The Tourist Guide shall always be aware of projecting a good and positive image of the destination & India adhering to the Ancient Indian concept of "Atithi Devo Bhava".
- The Tourist Guide shall consider himself / herself a friend of the tourists, be courteous and helpful and never betray the trust placed in them by the tourists and carry out his ethical and moral responsibilities with dignity.
- The Tourist Guide would, therefore, bear in mind that "word of mouth" publicity and comments have a tremendous impact on the creation of an image for the destination & country. This is several times more valuable than the most expensive advertisement that can be put out.
- The Tourist Guide would always be courteous, efficient, tactful, kind, understanding and project the warm and hospitable nature of Indians.
- The Tourist Guide would ensure to give correct and all possible information of the latest developments in the destination/country and keep himself / herself up to date. He / she would understand and convey the positive aspects of his culture and tradition, and be well versed with matters relating to local customs, habits and traditions to ensure that both the tourists and the local people respect each other.
- The Tourist Guide would always be punctual, well groomed, presentably dressed, well mannered, sober and cultured. His / her dedication and conduct should ensure that the image of the profession or that of the country is never tarnished.
- The Tourist Guide shall at all times be reliable with the entrusted duties and be of exemplary conduct, not only, in dealing with tourists but, with others such as the Government Officers and members of the public.
- The Tourist Guide shall refrain from unethical or discriminatory conduct and deal with propriety and impeccable honesty. He / she would refrain from entering into shady deals for monetary and other gains nor would he / she intentionally, mislead the tourists.
- The Tourist Guide shall refrain himself / herself from all possible arguments and remember that the customer is always right.
- The Tourist Guide shall uphold his / her status and reputation with a view to foment closer co - operation, understanding and collaboration with his / her counterparts through out India.
- The Tourist Guide would respect and safeguard the heritage, monuments and ecology of the destination.